

25STCV23946 25STCV23946

County: los-angeles

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Department: 310

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Case Number: 25STCV23946 Hearing Date: September 16, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 16, 2026

Case Name: Doe DH v. LAUSD, et al.

Case No.: 25STCV23946

Matter: Motion to Compel Compliance

Moving Party: Plaintiff Jane Doe DH

Responding Party: Non-Party Commission on Teacher Credentialing

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Jane Doe DH seeks to compel compliance with her business record subpoena served on Non-Party Commission on Teacher Credentialing with respect to Defendant Raul Preciado.

The subpoena seeks the following.

1. Any and all DOCUMENTS, including statements of decision, findings, summaries, opinions, rulings, and/or minutes regarding any California Commission on Teacher Credentialing investigation and/or hearing regarding RAUL PRECIADO (DOB: 06/1964), who was licensed by the California Commission on Teacher Credentialing.
2. Any and all DOCUMENTS regarding any disciplinary action imposed on RAUL PRECIADO, who is licensed by the California Commission on Teacher Credentialing.
3. Any and all DOCUMENTS regarding complaints about inappropriate behavior by RAUL PRECIADO.
4. Any and all DOCUMENTS regarding any response by RAUL PRECIADO to any complaints made against him.
5. Any and all DOCUMENTS regarding any alleged improper behavior by licensee RAUL PRECIADO.
6. Any and all DOCUMENTS submitted to the California Commission on Teacher Credentialing by RAUL PRECIADO, including but not limited to applications, statements, fingerprints, and forms.
7. Any and all DOCUMENTS referring and/or regarding correspondence and/or communications between the California Commission on Teacher Credentialing and RAUL PRECIADO.
8. Any and all DOCUMENTS referring and/or regarding correspondence and/or communications between the California Commission on Teacher Credentialing and LOS ANGELES UNIFIED SCHOOL DISTRICT regarding RAUL PRECIADO.
9. The California Commission on Teacher Credentialing's complete file of RAUL PRECIADO.

The Commission on Teacher Credentialing (CTC) argues that the release of these documents without a court order will result in criminal prosecution. Additionally, it argues that some of the requests are overbroad or seek privileged or private content.

The Motion is granted as to request nos. 1-2, but internal preliminary drafts, unadopted summaries, and meeting minutes of the Committee of Credentials are excluded pursuant to the Deliberative Process Privilege and Evidence Code section 1040 (Official Information).

The Motion is granted as to request nos. 3-5, but pursuant to Civil Code section 1798.24 and constitutional privacy rights, CTC must redact all personal identifying information (names, contact info, etc.) of minor students, non-party complainants, and third-party witnesses.

The Motion is granted as to request no. 6, but fingerprint records, DOJ/FBI criminal background check reports (rap sheets), and criminal history information are excluded from production pursuant to Penal Code sections 11105 and 11142.

The Motion is granted as to request no. 7, but settlement communications, confidential medical/psychological evaluations, or third-party personal information contained within the correspondence must be redacted.

The Motion is granted as to request no. 8, but this request is subject to the below limitations.

With respect to request nos. 1-8, the Court will also exclude records generated by external third parties (e.g., Pasadena PD police reports, court records, or independent medical files) held within CTC's investigative file. CTC is not the legal custodian of external third-party records and cannot authenticate them via Evidence Code section 1561. (Cooley v. Superior Court (2006) 140 Cal.App.4th 1039, 1045). Plaintiff must seek those directly from the originating entities.

Additionally, the home addresses, telephone numbers, social security number, medical records, or any other confidential information of Preciado and third-parties shall be redacted.

Any documents containing attorney-client or attorney work product privileged materials shall be redacted.

Also, given that the assaults took place in 2009-2010, the Court enters a temporal limitation of 1999 through 2015 for all documents produced.

The Motion is denied as to request no. 9, which is overbroad.

In sum, the Motion is granted in part as set forth herein. CTC should produce records within 30 days.

Pursuant to Education Code section 44230(a)(2), this Court Order authorizes the CTC to disclose the non-privileged responsive records ordered herein, relieving CTC personnel of liability under Education Code section 44248.

No sanctions.

Moving party to give notice.